

SENATE BILL 1608

By Bailey

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to higher education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Dependent child" means the natural child, stepchild, adopted child,
or posthumous child of a law enforcement officer or firefighter;

(2) "Firefighter" has the same meaning as defined in § 4-24-201 or a
bona fide member of a volunteer fire department;

(3) "Law enforcement officer" means a:

(A) Police officer of a municipality in this state;

(B) Commissioned member of the department of safety, the
wildlife resources agency, or the Tennessee bureau of investigation;

(C) Sheriff or deputy sheriff of a county in this state who is
engaged in law enforcement; or

(D) Correctional officer employed by the department of correction
or the department of children's services; and

(4) "Public institution of higher education" means a postsecondary
institution operated by the board of trustees of the University of Tennessee
system, a local governing board of trustees of a state university, or the board of
regents that offers courses of instruction leading to a certificate or degree.

(b) A resident of this state who is under twenty-three (23) years of age and who is the dependent child of a law enforcement officer or firefighter who was killed, or who died as a direct result of injuries received, while performing their official duties as a law enforcement officer or firefighter, is entitled to a waiver of tuition, maintenance fees, student activity fees, and any required registration or matriculation fees at the public institution of higher education at which the dependent child is admitted and enrolled.

(c) In order to receive a waiver of tuition and fees pursuant to this section, the dependent child must present to the public institution of higher education at which the dependent child is enrolled official certification from the state, local government, agency, or department that employed the law enforcement officer or firefighter verifying that the law enforcement officer or firefighter was killed, or died as a direct result of injuries received, while performing their official duties as a law enforcement officer or firefighter.

(d) A dependent child who qualifies for a waiver of tuition and fees pursuant to this section after the dependent child has paid all tuition and fees assessed for the term by the public institution of higher education at which the dependent child is enrolled, is not entitled to any refund or credit in the amount of the previously paid tuition and fees.

(e) The age limitation for dependent children in subsection (b) must not be strictly applied. To be eligible for a waiver of tuition and fees pursuant to this section, the dependent child must be matriculated as a full-time student at a public institution of higher education before attaining twenty-three (23) years of age. Once declared eligible, the dependent child remains eligible until one (1) of the following events has occurred:

(1) Before attaining twenty-three (23) years of age, the dependent child earns an undergraduate degree or certificate;

(2) The dependent child has earned one hundred thirty-five (135) semester hours, or the equivalent, excluding any required remedial or developmental hours; or

(3) The dependent child has attempted one hundred fifty (150) semester hours, or the equivalent, including any required remedial or developmental hours.

(f) Each public institution of higher education shall post information regarding the tuition and fee waiver established in this section on the institution's website.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to the 2026-2027 academic year and each academic year thereafter.